



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
GAYLORD DISTRICT OFFICE



LIESL EICHLER CLARK
DIRECTOR

November 4, 2021

VIA EMAIL

Mr. Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, MI 49601

Dear Mr. Dietlin:

SUBJECT: Follow-up to Violation Notice VN-012230 (VN-012230) Extension Request
National Pollutant Discharge Elimination System (NPDES) Permit No. MI0020257
Designated Name: Cadillac WWTP

On September 30, 2021, the Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), issued VN-012230 to Cadillac WWTP listing violations of the Michigan Administrative Code, Part 23, Pretreatment (Part 23), and the Michigan Industrial Pretreatment Program (MIPP) requirements in NPDES Permit No. MI0020257 issued to Cadillac WWTP. VN-012230 requires a written response including a Corrective Action Plan (CAP) to be submitted by November 30, 2021. On October 25, 2021, the WRD received a written request from Mr. Charles Barbieri on behalf of the City of Cadillac requesting to extend the response deadline. WRD staff have reviewed the submitted request and have the following comments:

1. Mr. Barbieri's letter requested an extension of approximately six months to allow the City of Cadillac to complete the bidding process to hire a consultant and review the current MIPP. The WRD has no objection to the request to extend the CAP response deadline to the items in VN-012230 which include changes to the existing approved MIPP. The WRD recognizes that it may be beneficial to seek the opinion of a consultant with expertise in pretreatment programs before providing a plan or schedule of work in response to many of the concerns stated in VN-012230.
2. The required actions stated in VN-012230 under Item 1 and, in part, for Item 2 do not require changes to the existing approved MIPP, Industrial User (IU) Permits, or Enforcement Response Plan (ERP). Item 1 in VN-012230 requires that the City of Cadillac respond to instances of non-compliance with the current IU Permit issued to Cadillac Casting, Inc. (CCI) according to the currently approved ERP. Item 2 in VN-012230 requires that the City of Cadillac or CCI resample within 30 days of becoming aware of a permit limit violation. As the City of Cadillac completes all sampling on behalf of CCI, no changes to the IU Permit are necessary to ensure resampling is completed. While this requirement must be included in the IU Permit when revised, and if not already included, then added to the program procedures, any necessary resampling itself must still be completed. Any changes to the IU Permit or to the program procedures may be addressed with the assistance of the consultant once

one has been selected. However, the City of Cadillac must respond to non-compliance with the current IU Permit as required by VN-012230 Items 1 and 2. The response to any instances of non-compliance with the Permit must follow the current approved ERP.

Please submit a written response addressing Items 1 and 2 listed in VN-012230 by November 30, 2021. The response must include any notice of violation issued to CCI in response to non-compliance with the current IU Permit since September 30, 2021. Any such notice of violation must comply with the current approved ERP and require a return to compliance with the permit. Sampling must also be repeated within 30 days as stated under Item 2. If sampling of CCI shows no violation of the IU Permit since VN-12230 was issued, documentation of CCI's compliance status is an adequate response. Please also submit a report on the City of Cadillac's progress in retaining a consultant by November 30, 2021.

A CAP to address all other items listed in VN-012230 must be submitted by May 2, 2022. The CAP must include a plan and a schedule of work to address the remaining items in VN-012230.

Should you require further information regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact me at LoweC9@michigan.gov; 989-330-4639; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282.

Sincerely,

Claire Lowe

Digitally signed by: Claire Lowe
DN: CN = Claire Lowe email = LoweC9@Michigan.
gov C = US O = EGLE OU = WRD
Date: 2021.11.04 12:47:44 -04'00'

Claire Lowe
Gaylord District Office
Water Resources Division

cc: Mr. Charles Barbieri, Foster, Swift, Collins & Smith PC
Mr. Brian Jankowski, EGLE
Mr. Donal Brady, EGLE